

BC099775 BC099775

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: BC099775 Hearing Date: July 20, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

JOHN ARCAS, et al.,

Plaintiff,

vs.

CALIFORNIA INS.

CO, aka CALIFORNIA CAPITAL INSURANCE, et al.,

Defendants.

Case No.:

BC099775

Hearing Date:

July 20, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

JOHN ARCAS AND MARIA

ARCAS' MOTION TO CORRECT CLERICAL ERROR IN APPLICATION FOR AND RENEWAL OF JUDGMENT

Background

On October 31, 2025, Judgment Creditors

John

Arcas and Maria Arcas (jointly, "Creditors") filed an "Application for and Renewal of Judgment." The original judgment was made on January 3, 1996 and was previously renewed on November 10, 2016.

Creditors now move for an order correcting a clerical error in the Application for and Renewal of Judgment filed on October 31, 2025.

Discussion

Creditors "seek[] to correct the misspelling of Judgment Debtor Stanely Hollis ('Debtor') in the Application for and Renewal of Judgment (Form EJ-190) so that the renewal accurately reflects the judgment debtor's name as it appears in the original judgment entered on January 3, 1996." (Notice of Mot., 2:7-10.) Creditors make their motion pursuant to Code of Civil Procedure section 473, subdivision (d) which states that "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

Creditors' motion contends that "[b]ecause the underlying judgment is correct and the error appears only in the renewal paperwork, the correction is purely clerical. The Court has authority under Code of Civil Procedure section 473(d) to correct clerical mistakes in its records at any time." (Mot., 3:9-11.) In support, Creditors' counsel provides a declaration, which states that "[t]he Court entered judgment in this case on January 2, 1996," which "correctly identifies the Judgment Debtor as Stanley Hollis." (Rowell Decl., ¶ 2; Ex. A.) Counsel explains that "[o]n October 31, 2025, I filed an Application for and

Renewal of Judgment (Form EJ-190)," but "[d]ue to a clerical and typographical error, the debtor's first name was misspelled on the renewal form. The original judgment contains the correct spelling." (Rowell Decl., ¶¶ 3-4.) Counsel attests that he "attempted to file an amended renewal to correct the spelling, but the clerk rejected it and advised that a noticed motion and court order are required." (Rowell Decl., ¶ 5.) Counsel clarifies that "[t]he correction requested does not alter the judgment, and a new party, or change substantive rights. It merely corrects the renewal paperwork so it conforms to the judgment." (Rowell Decl., ¶ 6.)

The Court reviewed the original judgment and the application for renewal. The Court finds that the application inadvertently listed the incorrect spelling for Judgment Debtor Stanley Hollis as "Stanely Hollis." Thus, the application should be corrected to reflect the correct name.

Conclusion

Based on the foregoing, Creditors motion to correct the clerical error in the Application for and Renewal of Judgment is GRANTED.

The Application for and Renewal of Judgment filed on October 31, 2025, is corrected to reflect the Judgment Debtor's name as Stanley Hollis, consistent with the original judgment entered on January 3, 1996. The corrected application is deemed filed on its original filing date.

Creditors are ordered to provide notice of this Order.

DATED: July 20, 2026 _____

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court